

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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STERLING CHARLES,

Plaintiff,

- against -

CITY OF NEW YORK; POLICE OFFICER V WONG
TAX ID# 931448 - FIRST NAME UNKNOWN; POLICE
OFFICER JOHN DOE,

Defendants.

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SUMMONS

Plaintiff designates Queens
County as the place of trial.

The basis of venue is:
The county in which the
action arose per CPLR 504(3)

The cause of action arose in
Queens County and is against
the City of New York

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
October 31, 2022

DEFENDANT'S ADDRESS:

City Of New York
NYC Law Dept.
100 Church St.,
New York, NY 10007

PLAINTIFF'S ATTORNEY:



Masai I. Lord, Esq.
Attorney for Plaintiff
14 Wall St, Ste 1603
New York, NY 10005

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF QUEENS

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Index No.:

STERLING CHARLES ,

Plaintiff,

- against -

VERIFIED COMPLAINT

CITY OF NEW YORK; POLICE OFFICER V WONG
TAX ID# 931448 - FIRST NAME UNKNOWN; POLICE
OFFICER JOHN DOE

Defendants.

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Plaintiff, STERLING CHARLES, by his attorneys. LORD LAW GROUP PLLC, alleges upon knowledge as to himself and his own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff Sterling Charles brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

3. That at all times hereinafter mentioned, Police Officers V Wong and John Doe were employees of the New York City Police Department, acting in their capacity as Police Officers and under color of law.

4. That all acts and incidents complained of herein occurred in Queens County, and State of New York.

5. That by reason of the foregoing, this Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATE LAW CLAIMS PREREQUISITES

6. That within 90 days after the state law claim of False Imprisonment accrued, plaintiff served a Notice of Claim, in writing, sworn by the claimant, containing the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when, the place and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendants by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

7. That plaintiff appeared for a hearing pursuant to § 50-H of the General Municipal Law on or about March 24, 2022 and March 31, 2022.

8. That the defendants have not adjusted, settled the claim since the Notice of Claim was served and it has exceeded 30 days.

9. That this claim has been commenced and this action has been started within one year and ninety days after the accrual of the state law violation upon which the New York State law claims are based.

10. That all conditions and requirements precedent to the commencement of this action have been complied with.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

11. On November 17, 2021 Plaintiff was driving on 495 Expressway westbound, when he was pulled over by police over allegations of Speeding.

12. When he was pulled over, Mr. Charles asked the Officer the reason for the stop, because he did not believe that he had violated any traffic laws.

13. When the officer did not respond, after several requests, Mr. Charles asked to speak to his superior officer.

14. After Mr. Charles requested a supervisor, the Officers threatened to incarcerate Mr. Charles for not cooperating.

15. The officer's partner, who was standing on the passenger side, walked over the driver's side and opened the door – yanking him out of the vehicle by his wrist.

16. This aggressive pull caused injury and substantial pain to Mr. Charles.

17. After the stop was completed, Mr. Charles went immediately to the hospital.

18. At the hospital, he received x rays and a bandage and soft cast on his wrist. This occurred because doctors feared that his wrist may be broken.

19. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the New York Police Department, its agents, servants and/or employees.

23. As a result of the DEFENDANTS' conduct, Plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation,

apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

Claim I: Excessive Force Under 42 USC 1983

Against Officer Wong and/or Officer John Doe

24. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

25. Completely unnecessary and without justification, Defendant Wong and/or John Doe used force against Plaintiff

26. The force used was unreasonable and excessive.

27. As a result of the unreasonable and excessive force, plaintiff suffered injuries requiring, physical rehabilitation, and substantial pain.

28. Defendants' use of force was a substantial factor in causing the harm to plaintiff.

29. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.

Claim II: Failure To Intervene Under 42 USC 1983

Against Officer Wong and/or Officer John Doe

30. Plaintiff repeats and re-alleges each and every allegation as if fully set forth herein.

31. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct, had a duty to intervene and prevent such conduct and failed to intervene.

32. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments.

33. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

Claim III: Assault and Battery Under New York State Law
Against Officer Wong and/or Officer John Doe

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

35. That, on or about November 17, 2021, NYPD Officers, who were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

36. That, on or about November 17, 2021 NYPD Officers committed an assault and battery knowingly, intentionally and willfully.

37. That, on or about November 17, 2021 the individual DEFENDANTS who committed the aforementioned assault and battery upon the Plaintiff were acting within the scope of their employment with the Defendant, The City of New York.

38. That on or about November 17, 2021 the assault and battery on the Plaintiff was without probable cause and was not the result of a lawful arrest.

39. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

Claim IV: Prima Facie Tort Under New York State Law*Against City of New York and Officer Wong and Officer John Doe*

40. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

41. Defendants intentionally inflicted harm, resulting in damages, without excuse or justification, by an act or series of acts, excusing the foregoing claims, that were otherwise lawful.

42. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

Claim V: Violations of the New York State Constitution*Against City of New York and Officer Wong and Officer John Doe*

43. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

44. By virtue of the aforementioned acts, the Individual Defendants are liable to Plaintiff for violating his right to due process under Article I § 6 of the New York State Constitution, and her right to be free of unreasonable and unlawful searches and seizures under Article I § 12 of the New York State Constitution.

45. Defendant City of New York is liable for these violations of the New York State Constitution under the principle of *respondeat superior*. subsequently, the individual officers and the City of New York are liable to Plaintiff for compensatory and punitive damages.

DAMAGES

46. As a direct and proximate cause of DEFENDANTS' actions and inactions, Plaintiff was deprived of his civil rights under the Fourth, Fifth, Sixth, Eighth, and Fourteen Amendments of the United States Constitution and under the laws of New York.

47. This action seeks damages from on or prior to November 17, 2021 through the present.

48. Such acts and omissions of DEFENDANTS caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANTS at the time of the acts and omissions and which continue to date and will continue into the future: susceptibility to physical assaults and batteries and physical assault and batteries, physical injuries, pain and suffering, mental anguish, emotional distress, psychological damage, loss of liberty, loss of relationships, loss of property, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation .

49. Such acts and omissions of DEFENDANTS entitle Plaintiff to compensatory and punitive damages.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the DEFENDANTS:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court November deem appropriate and equitable.

Dated: New York, New York
October 31, 2022

Yours, etc.

LORD LAW GROUP PLLC



Masai I. Lord
Attorneys for Plaintiff
STERLING CHARLES
14 Wall St., Ste 1603
New York, NY 10279
718-701-1002

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD LAW GROUP PLLC, attorneys of record for Plaintiff STERLING CHARLES. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
October 31, 2022



MASAI I. LORD
Counsel for Plaintiff